Office of the Mayor
City of Seattle
Bruce A. Harrell, Mayor

Executive Order 2023-2: Rescinding Mayoral Directives #9 and #10 and Executive Order 2021-08 and Lifting the COVID-19 Vaccination Requirement for City Employees, Contractors, and Volunteers.

An Executive Order rescinding prior directives and order requiring COVID-19 vaccination for City employees, contractors, and volunteers.

WHEREAS, on February 29, 2020, Governor Jay Inslee issued Proclamation 20-05 declaring a state of emergency due to the worldwide outbreak of the novel coronavirus ("COVID-19") which threatened public health, safety, and welfare; and

WHEREAS, on March 1, 2020, King County Executive Dow Constantine issued a proclamation of emergency declaring a state of emergency in King County as a result of the COVID-19 pandemic; and

WHEREAS, on March 3, 2020, then-Mayor Jenny Durkan issued a Mayoral Proclamation of Civil Emergency to address the COVID-19 pandemic, which had already resulted in thousands of deaths across the United States; and authorized the emergency powers vested in the City of Seattle Mayor by RCW chapter 38.52, and City of Seattle Charter Article V, Section 2, and Seattle Municipal Code Chapter 10.02, as described in the Proclamation; and

WHEREAS, then-Mayor Durkan issued additional directives to combat the spread of COVID-19 in the City, including Mayoral Directives #9 and #10, and Executive Order 2021-08, which had the combined effect of requiring vaccination against COVID-19 for City employees by October 18, 2021, and contractors and volunteers; and

WHEREAS, the requirement for City employees and contractors to be fully vaccinated against COVID-19 was consistent with the requirement, in Executive Proclamation identified as ACO-8-27-EO, for employees of King County to be fully vaccinated against COVID-19; and

WHEREAS, the requirement for City employees and contractors to be fully vaccinated against COVID-19 was consistent with the requirement, in Gubernatorial Directive 22-13, for employees of the State of Washington to be fully vaccinated against COVID-19; and

WHEREAS, the vaccination requirements of the State, the County, and the City, were executed in coordination with each other and consistent with the best available public health science and expertise from the Centers for Disease Control, Public Health--Seattle & King County, and the Department of Social and Health Services; and

WHEREAS, the efforts of Washington residents, including State, County, and City employees resulted in a more than eighty-five percent (85%) vaccination rate in both King County and Seattle; and

WHEREAS the United States Centers for Disease Control reports that vaccination significantly reduces the rate of infection with the COVID-19 virus as well as the rate of hospitalization for those who contract COVID-19; and

WHEREAS, the American Medical Association has indicated that COVID-19 is becoming endemic, meaning that COVID-19 will remain a permanent, but manageable part of daily life; and

WHEREAS, as of August 12, 2022, the Centers for Disease Control reports that more than ninety-five percent (95%) of people in the United States have some degree of immunity from the COVID-19 virus, either as a result of infection and recovery or immunization; and

WHEREAS, Governor Jay Inslee terminated the COVID-19 State of Emergency proclaimed in Proclamation 20-05, and also rescinded all COVID-19 emergency proclamations issued pursuant to Proclamation 20-05, effective October 31, 2022; and

WHEREAS, the City of Seattle needed to assess the potential of how a winter surge in COVID-19 might impact the community before rescinding mandates regarding City employees; and

WHEREAS, the use of emergency powers no longer appears necessary to manage the risks of COVID-19 for the reasons set forth above and because City residents and employees can elect to stay up to date with boosters, including the recent updated bivalent doses, to lower the risk of severe illness, hospitalization, or death from COVID-19.

NOW, THEREFORE, I, Bruce A. Harrell, Mayor of Seattle, hereby declare the following and direct City departments to carry out the following orders:

1. **Prior Mayoral Directives Mandating COVID-19 Vaccination for all City Employees are Rescinded**

    a. At 11:59 pm PST on Monday, February 6, 2023, the COVID-19 vaccination requirement for City of Seattle employees is rescinded. Full vaccination will no longer be required as a condition of City employment. City employees will no longer be required show proof of full vaccination as a condition of employment or request religious or medical exemptions to the requirement or reasonable accommodations.

    b. Mayoral Directives #9 and #10 are hereby rescinded at 11:59 pm PST, Monday, February 6, 2023.

2. **Executive Order Mandating COVID-19 Vaccination for all Contractors and Volunteers is Rescinded**

    a. At 11:59 pm PST on Monday, February 6, 2023, the COVID-19 vaccination requirement for City of Seattle contractors and volunteers working in-person and onsite with Executive Branch departments and offices is rescinded. Contractors and volunteers will no longer be required show proof of full vaccination as a condition of providing services to an Executive Branch department or office.

    b. Executive Order 2021-08 is hereby rescinded at 11:59 pm PST, Monday, February 6, 2023.

3. Implementation

a. Under the guidance of the Directors of the Seattle Human Resources Department and the Finance and Administrative Services Department, Executive Branch departments and offices shall update and implement procedures, guidelines, forms, and policies as necessary to implement this Executive Order. This includes, but is not limited to, any protocols, policies, and guidelines regarding personnel and workplace health and safety.

b. All Executive Branch departments and offices shall take whatever other steps are necessary to implement this Executive Order.

c. Executive Branch departments and offices shall continue to comply with all requirements to ensure that City workplaces remain safe and healthy for all City employees.

4. Staying up to date with COVID-19 vaccination is supported and encouraged

a. According to Public Health – Seattle & King County, COVID-19 vaccines remain highly effective at reducing the risk of serious illness, hospitalization, and death from COVID-19.

b. Therefore, all City employees, contractors, volunteers, visitors, and residents are encouraged to stay up to date with their COVID-19 vaccination, including all recommended boosters.

5. Restrictions by another Governmental Agency

a. Nothing in this order exempts any employee, contractor, or volunteer from complying with more restrictive requirements from the State of Washington, King County, or the federal government, or any other applicable governmental agency.

6. Duration of this Executive Order

a. This Executive Order shall remain in effect until and unless it is amended or terminated by the current or any future Mayor of Seattle.

b. The City shall monitor future guidance and directives from Public Health – Seattle & King County, as well as the county, state, and federal government to determine if termination or supplementation to this Executive Order is necessary.

Any questions regarding this Executive Order should be directed to General Counsel Jeremy Racca, at jeremy.racca@seattle.gov, Office of the Mayor.

Dated this 6th day of February, 2023.

Bruce A. Harrell
Mayor of Seattle